

road authorities mean a *coordinating road authority*, a *responsible road authority*, a *road authority* or a *State road authority* as defined in section 3(1) of the **Road Management Act 2004** as the context requires;

road infrastructure manager has the same meaning as *coordinating road authority* in section 3(1) of the **Road Management Act 2004**;

roadway has the same meaning as it has in section 3(1) of the **Road Management Act 2004**;

shoulder has the same meaning as it has in section 3(1) of the **Road Management Act 2004**;

TMP means a **traffic management plan** as defined in this Code;

traffic has the same meaning as it has in section 3(1) of the **Road Management Act 2004**;

traffic management plan includes a traffic management plan under section 99A(4) of the **Road Safety Act 1986**;

Notes:

- i. Section 99A(4) of the **Road Safety Act 1986** requires that a traffic management plan ‘comply with the prescribed requirements’ and be prepared in accordance with any requirements of the coordinating road authority in accordance with the **Road Management Act 2004**. The prescribed requirements with which a traffic management plan must comply are specified in regulation 35 of the Road Safety (Traffic Management) Regulations 2019.
- ii. An infrastructure manager or works manager must comply with any requirements in relation to the safety of road users and section 99A of the **Road Safety Act 1986** (in accordance with Clause 3 of Schedule 7 to the **Road Management Act 2004**).

Work Health and Safety means *Occupational Health and Safety*;

WHS means *Occupational Health and Safety*.

- (4) Where there is an inconsistency between a provision of this Code and the AGTTM, an Australian Standard or another document incorporated into this Code, then the provision of this Code shall prevail.
- (5) References to the AGTTM, an Australian Standard or another document that are applied, adopted or incorporated in this Code are references to the AGTTM, the Australian Standard or the other document as amended from time to time.
- (6) This Code is to be interpreted in accordance with the **Interpretation of Legislation Act 1984** as if it were a subordinate instrument within the meaning of that Act.

7. Legal effect

- (1) Whilst this Code itself cannot impose a duty on any person, direct how any matter or thing is to be done, create an enforceable legal right or impose any liability or penalty (in accordance with section 24(4) of the **Road Management Act 2004**), both the **Road Management Act 2004** and the **Road Safety Act 1986** do impose duties, directions and liabilities and do create enforcement legal rights. See Division 2 of this Part for more detail.
- (2) This Code is also admissible in evidence in any proceeding to which the **Road Management Act 2004** or section 99A of the **Road Safety Act 1986** applies (in accordance with section 27 of the **Road Management Act 2004**).
- (3) There are also additional obligations on employers under the **Occupational Health and Safety Act 2004**. See Clause 14 of this Part for more detail.

8. Reference documents

The documents referenced in this Code are listed in Appendix A.